

Anjana Pillai vs P.Sasikumar on 7 January, 2016

Author: K.Ramakrishnan

Bench: A.M.Shaffique, K.Ramakrishnan

IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT:

THE HONOURABLE MR.JUSTICE A.M.SHAFFIQUE
&
THE HONOURABLE MR. JUSTICE K.RAMAKRISHNAN

TUESDAY, THE 14TH DAY OF MARCH 2017/23RD PHALGUNA, 1938

Mat.Appeal.No. 565 of 2016

AGAINST THE JUDGMENT IN OP.774/2013 of
FAMILY COURT, MAVELIKKARA DATED 07-01-2016

APPELLANTS/PETITIONERS:

1. ANJANA PILLAI
D/O. G ANANTHAN PILLAI, RESIDING AT 'ANASWARA'
SOUTH MANKUZHY, PULLIKKANAKU P.O, KAYAMKULAM 690 537
2. KUM. ANAGHA, AGED 19 YEARS
D/O. ANJANA PILLAI
RESIDING AT 'ANASWARA', SOUTH MANKUZHY
PULLIKKANAKU P.O., KAYAMKULAM 690 537

BY ADV. SRI.ROY CHACKO

RESPONDENT/RESPONDENT:

P.SASIKUMAR
S/O. R. PARAMESWARAN PILLAI, RESIDING AT KURUVELIKATTIL
KIZHAKKEVAZHI, THRIPERUMTHURA VILLAGE,
CHENNITHALA P.O-690 008.

R1 BY ADV. SRI.R.BINDU (SASTHAMANGALAM)
R1 BY ADV. SRI.PRASANTH M.P

THIS MATRIMONIAL APPEAL HAVING BEEN FINALLY HEARD ON 14-03-2017,
THE COURT ON THE SAME DAY DELIVERED THE FOLLOWING:

ami/

A.M.SHAFFIQUE &
K.RAMAKRISHNAN, JJ.

Mat.Appeal No.565 of 2016

Dated this the 14th day of March, 2017

JUDGMENT

A.M.Shaffique, J.

This appeal is filed by the petitioners in O.P.No.774/13, challenging judgment dated 7.1.2016, by which, an application for maintenance for the petitioners was partly allowed. The original petition was filed inter alia seeking past and future maintenance for the divorced wife and minor child under sections 18 and 20 of the Hindu Adoptions and Maintenance Act, 1956.

2. There is no dispute about the fact that the couple were married and later on divorced. Claim was for maintenance @ `5,000/- per month for the first petitioner/wife and @ `7,000/- for the minor daughter. The 1st petitioner has also claimed `3,60,000/- as arrears of maintenance.

3. The respondent entered appearance and filed objections stating his readiness to provide maintenance to the minor @ `2,000/- per month. However, he disputed the liability to pay :-2-:

maintenance to the wife. Later, he remained ex parte. Based on the proof affidavit filed by the petitioner, the Family Court allowed maintenance @ `5,000/- for the minor. However, maintenance was denied in respect of wife/1st petitioner.

4. Learned counsel for the appellants impugn the aforesaid judgment on two grounds. One is that a divorced wife was entitled for maintenance under Section 18 of the Hindu Adoptions and Maintenance Act, 1956, and secondly, the quantum of maintenance granted in favour of the minor was less than what has been claimed.

5. On the other hand, the learned counsel appearing for the respondent submitted that the Family Court was justified in rejecting the claim of the wife, since Section 18 of the Hindu Adoptions and Maintenance Act, 1956, applies only to a wife and a divorced wife is not entitled for maintenance. In regard to the minor child the amount of `5,000/- already awarded, is reasonable and there is no reason to interfere in that.

6. The short question to be considered in the above appeal is with regard to the validity of the aforesaid judgment.

7. One main contention urged by the learned counsel for the appellants is that though the word 'Hindu wife' is used :-3-:

under Section 18 of the Hindu Adoptions and Maintenance Act, 1956, it includes the divorced wife as well. Whereas, the learned counsel appearing for the respondent placed reliance upon the judgment in Chand Dhawan (Smt) v. Jawaharlal Dhawan [(1993) 3 SCC 406], in which, the Apex Court, after having considered the claim of a Hindu wife and a divorced wife, had compared the various provisions under Section 18 of the Hindu Adoptions and Maintenance Act, 1956, Section 25 of the Hindu Marriage Act and Section 125 of Cr.P.C. and had observed that as far as Section 18 of the Hindu Adoptions and Maintenance Act, 1956, is concerned, the same would apply at a stage when the status of the wife remains as such. However, a divorced wife is entitled for maintenance if the claim is made under Section 25 of the Hindu Marriage Act. Even under Section 125 of Cr.P.C., the explanation given to the said provision clarifies that a wife includes a divorced wife. Taking into consideration the aforesaid factual issues and law laid down by the Apex Court, it is rather clear that Section 18 of the Hindu Adoptions and Maintenance Act, 1956, cannot be invoked by a divorced wife, whereas, the proper method is to apply Section 25 of the Hindu Marriage Act, in which, appropriate provisions are already been made to enable :-4-:

a divorced wife to claim maintenance. Section 25 of the Hindu Marriage Act, 1955, reads as follows:

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